

Motion to Compel #2; and \$1,250 for Motion to Compel #3 against Plaintiffs Jaqueline Melendez-Zuniga, Magaly Cortes Medina, and Vania Figueroa-Cabrales, which must be paid within 45 days after service of this order.

The court shall impose monetary sanctions against a party, person or attorney who unsuccessfully makes or opposes a motion to compel, unless the court finds that a party acted with substantial justification or other circumstances that make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. §§2030.290, 2031.300.) California Rules of Court Rule 3.1348 states “(t)he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed.” A court can find that there is no substantial justification when a party served discovery responses on the night before the hearing on the discovery motion when the party failed for months to produce documents and discovery responses. (*Deck v. Developers Investment Co., Inc.* (2023) 89 Cal.App.5th 808, 831.) Even when it is highly disputed whether the last-minute production was full, “(i)t is enough that it was untimely in the extreme and only done once Plaintiff had incurred the cost of bringing a motion to compel.” (*Ibid.*)

Here, the motions to compel were filed and served in March 2026, which still resulted in months-long failure to comply with Plaintiffs’ discovery obligations. Discovery responses were dated approximately three months later, June 8, 2026, ensuring they would be served before the original hearing date for the motions to compel, which was June 25, 2026. As a result, it appears that although the discovery motions are moot, Plaintiffs were only motivated to produce discovery responses as the result of Defendant’s motions to compel.

CU-25-00205 City of Hollister v. The Baler Bar and Grill, et al.

The Court read and considered Plaintiff’s Case Management Statement. The Case Management Conference is continued to October 1, 2026, at 1:30 p.m.

CU-25-00212 Touchstone Cellars LLC vs. Intervine Capital Cienega Valley LLC
d/b/a Eden Rift Vineyards

The Court read and considered the parties' Case Management Statements. The Case Management Conference is continued to October 22, 2026, at 1:30 p.m.

CU-25-00335 1785 San Felipe 1 LLC vs. McPhail, Scott et al.

The Court read and considered Plaintiff's Case Management Statement. The Case Management Conference is continued to January 14, 2027, at 1:30 p.m.